Section 55 Protection of the Environment Operations Act 1997

Environment Protection Licence

Licence Details	
Number:	10039
Anniversary Date:	22-August

Licensee
BLUE MOUNTAINS CITY COUNCIL
LOCKED BAG 1005
KATOOMBA NSW 2780

Premises
BLAXLAND WASTE MANAGEMENT FACILITY
28-30 ATTUNGA ROAD
BLAXLAND NSW 2774

Scheduled Activity (Act)	Licensing Fee Category (Regulation)	Scale
Waste disposal (application to land)	Waste disposal by application to land	Any capacity
Waste storage	Waste storage - other types of waste	Any other types of waste stored

Environment Protection Licence

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Information about this licence

Dictionary

A definition of terms used in the licence can be found in the dictionary at the end of this licence.

Responsibilities of licensee

Separate to the requirements of this licence, general obligations of licensees are set out in the Protection of the Environment Operations Act 1997 ("the Act") and the Regulations made under the Act. These include obligations to:

- ensure persons associated with you comply with this licence, as set out in section 64 of the Act;
- control the pollution of waters and the pollution of air (see for example sections 120 - 132 of the Act);
- report incidents causing or threatening material environmental harm to the environment, as set out in Part 5.7 of the Act.

Variation of licence conditions

The licence holder can apply to vary the conditions of this licence. An application form for this purpose is available from the EPA.

The EPA may also vary the conditions of the licence at any time by written notice without an application being made.

Where a licence has been granted in relation to development which was assessed under the Environmental Planning and Assessment Act 1979 in accordance with the procedures applying to integrated development, the EPA may not impose conditions which are inconsistent with the development consent conditions until the licence is first reviewed under Part 3.6 of the Act.

Duration of licence

This licence will remain in force until the licence is surrendered by the licence holder or until it is suspended or revoked by the EPA or the Minister. A licence may only be surrendered with the written approval of the EPA.

Licence review

The Act requires that the EPA review your licence at least every 5 years after the issue of the licence, as set out in Part 3.6 and Schedule 5 of the Act. You will receive advance notice of the licence review.

Fees and information to be sent to the EPA

For each licence fee period you must pay:

- an administrative fee; and
- a load-based fee (if applicable).

Usually, the licence fee period is the same as the reporting period.

The EPA publication "A Guide to Licensing" contains information about how to calculate your licence fees.

A licence subject to load-based licensing (LBL) requires an Annual Return to be submitted to the EPA, comprising a Statement of Compliance for Load Based Fee Calculation for each assessable pollutant required by the licence. The Annual Return must be submitted by the "due date", as defined in the dictionary at the end of the licence. Refer to the Annual Return reporting requirements under Section 6 "Reporting Conditions".

Transfer of licence

The licence holder can apply to transfer the licence to another person. An application form for this purpose is available from the EPA.

Public register and access to monitoring data

Part 9.5 of the Act requires the EPA to keep a public register of details and decisions of the EPA in relation to, for example:

- licence applications;
- licence conditions and variations;
- statements of compliance;
- load based licensing information; and
- load reduction agreements.

Under s320 of the Act application can be made to the EPA for access to monitoring data which has been submitted to the EPA by licensees.

This licence is issued to:

Licensee
BLUE MOUNTAINS CITY COUNCIL
LOCKED BAG 1005
KATOOMBA NSW 2780

subject to the conditions which follow.

1 Administrative Conditions

A1 What the licence authorises and regulates

A1.1 This licence authorises the carrying out of the scheduled activities listed below at the premises specified in A2. The activities are listed according to their Scheduled Activity (Act) classification, Licensing Fee Category (Regulation) classification and the scale of the operation.

Unless otherwise further restricted by a condition of this licence, the scale at which the activity is carried out must not exceed the maximum scale specified in this condition.

Scheduled Activity (Act)	Licensing Fee Category (Regulation)	Scale
Waste disposal (application to land)	Waste disposal by application to land	Any capacity
Waste storage	Waste storage - other types of waste	Any other types of waste stored

A2 Premises or plant to which this licence applies

A2.1 The licence applies to the following premises:

Premises Details
BLAXLAND WASTE MANAGEMENT FACILITY
28-30 ATTUNGA ROAD
BLAXLAND NSW 2774
LOT 376//DP823999, LOT 2//DP1232534

A2.2 In relation to condition A2.1, the premises is defined by the most recent premises map(s) held on EPA Electronic File DOC25/390083-4

A3 Information supplied to the EPA

A3.1 Works and activities must be carried out in accordance with the proposal contained in the licence application, except as expressly provided by a condition of this licence.

In this condition the reference to "the licence application" includes a reference to:

a) the applications for any licences (including former pollution control approvals) which this licence replaces under the Protection of the Environment Operations (Savings and Transitional) Regulation 1998; and
b) the licence information form provided by the licensee to the EPA to assist the EPA in connection with the issuing of this licence.

A3.2 The Landfill Environmental Management Plan (LEMP) is not to be taken as part of the documentation in A3.1, other than those parts specifically referenced in this licence.

Note: For the purposes of this licence the abbreviation "LEMP" is defined as the document titled "Blaxland Resource Recovery and Waste Management Facility - Site Environmental Management Plan" compiled by Blue Mountains City Council, dated 2022 and as updated from time to time (EPA Reference: DOC25/390083-5).

2 Discharges to Air and Water and Applications to Land

P1 Location of monitoring/discharge points and areas

P1.1 The following points referred to in the table below are identified in this licence for the purposes of monitoring and/or the setting of limits for the emission of pollutants to the air from the point.

Air

EPA Identification Number	Point Type	Point Type Description	Location Description
7	Monitoring	Dust Monitoring	Monitoring location labelled 'D07' on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
8	Monitoring	Dust Monitoring	Monitoring location labelled 'D08' on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
10	Discharge & Monitoring	Surface gas monitoring	Landfill gas monitoring conducted in a 25 meter

			grid pattern over the landfill footprint. Monitoring locations labelled on map titled â€œ2025-06-10 Gas Monitoring Points â€“ 10039 Cleanedâ€, sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-7)
27	Monitoring	Weather Monitoring	Monitoring location labelled 'WS01' on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)

P1.2 The following utilisation areas referred to in the table below are identified in this licence for the purposes of the monitoring and/or the setting of limits for any application of solids or liquids to the utilisation area.

P1.3 The following points referred to in the table are identified in this licence for the purposes of the monitoring and/or the setting of limits for discharges of pollutants to water from the point.

Water and Land

EPA Identification Number	Type of Monitoring Point	Type of Discharge Point	Location Description
1	Discharge to Waters Effluent Quality Monitoring	Discharge to Waters Effluent Quality Monitoring	Discharge to Cripple Creek from the final downstream sedimentation pond. Monitoring location labelled 'E01' on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)

12	Groundwater		Monitoring location labelled â€˜MW02â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
14	Groundwater		Monitoring location labelled â€˜MW04â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
16	Groundwater		Monitoring location labelled â€˜MW06â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
17	Groundwater		Monitoring location labelled â€˜MW07â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
18	Surface water		Downstream monitoring location labelled 'S01' on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)

20	Surface water		Upstream monitoring location labelled â€˜S03â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
21	Leachate		Leachate monitoring location labelled â€˜L01â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
22	Surface Water		Monitoring location labelled â€˜S22â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
23	Groundwater		Monitoring location labelled â€˜MW08â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
24	Groundwater		Monitoring location labelled â€˜MW09â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA

			Reference: DOC25/390083-6)
25	Groundwater		Monitoring location labelled â€˜MW10â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
26	Leachate		Monitoring location labelled â€˜L02â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)
28	Groundwater		Monitoring location labelled â€˜MW11â€™ on map titled "2025-06-10 Monitoring Points â€“ 1039 Cleaned", sent to the EPA on 11/06/2025. (EPA Reference: DOC25/390083-6)

3 Limit Conditions

L1 Pollution of waters

L1.1 Except as may be expressly provided in any other condition of this licence, the licensee must comply with section 120 of the Protection of the Environment Operations Act 1997.

L2 Concentration limits

L2.1 For each monitoring/discharge point or utilisation area specified in the table/s below (by a point number), the concentration of a pollutant discharged at that point, or applied to that area, must not exceed the concentration limits specified for that pollutant in the table.

L2.2 Where a pH quality limit is specified in the table, the specified percentage of samples must be within the specified ranges.

L2.3 To avoid any doubt, this condition does not authorise the pollution of waters by any pollutant other than those specified in the table\s.

L2.4 Water and/or Land Concentration Limits

POINT 1

Pollutant	UOM	50 percentile concentration limit	90 percentile concentration limit	3DGM concentration limit	100 percentile concentration limit
pH	pH				6.5-8.5
Ammonia	milligrams per litre				0.9
Total suspended solids	milligrams per litre				50

L2.5 Exceedances of the concentration limits specified in condition L2.3 are permitted at the following points for the duration of the overflow:
Point 1 - whenever a discharge is occuring due to stormwater events greater than or equal to a 1 in 10 year recurrence interval of 24 hours duration and where the licence has taken all practical measures to avoid or minimise water pollution.

L3 Waste

L3.1 The licensee must not cause, permit or allow any waste to be received at the premises, except the wastes expressly referred to in the column titled "Waste" and meeting the definition, if any, in the column titled "Description" in the table below.
Any waste received at the premises must only be used for the activities referred to in relation to that waste in the column titled "Activity" in the table below.
Any waste received at the premises is subject to those limits or conditions, if any, referred to in relation to that waste contained in the column titled "Other Limits" in the table below.
This condition does not limit any other conditions in this licence.

Waste	Description	Activity	Other Limits
NA - Waste	Any waste received on site that is below licensing thresholds in Schedule 1 of the POEO Act, as in force from time to time	-	NA

NA - Asbestos waste	As defined in Schedule 1 of the POEO Act, as in force from time to time.	Waste disposal (application to land)	No more than 100,000 tonnes of waste, in total, may be disposed of per annum.
NA - General solid waste (putrescible)	As defined in Schedule 1 of the POEO Act, as in force from time to time.	Waste disposal (application to land),Waste storage	No more than 100,000 tonnes of waste, in total, may be disposed of per annum.
NA - General solid waste (non-putrescible)	As defined in Schedule 1 of the POEO Act, as in force from time to time.	Waste disposal (application to land),Waste storage	No more than 100,000 tonnes of waste, in total, may be disposed of per annum.

L3.2 The licensee must not dispose of any tyre at the premises unless:

a) the tyre has a diameter of 1.2 metres or more; or
b) the tyre has been shredded or had its walls removed as defined in condition L3.3 (a); or
c) the tyre was delivered to the premises as part of a domestic load as defined by condition L3.3 (b).

L3.3 In condition L3.2:

a) tyres are taken to be shredded only if the tyres are in pieces measuring no more than 250mm in any direction; and
b) domestic loads means a load containing no more than 5 tyres having a diameter of less than 1.2 metres.

L3.4 Tyres stockpiled on the premises must:
a) not exceed fifty (50) tonnes of tyres at any one time; and
b) be located in a clearly defined area away from the tipping face; and
c) be managed to control vermin; and
d) be managed to prevent any tyres from catching fire.

L4 Hours of operation

L4.1 All work at the premises must be conducted between the following hours:
7:00 am to 7:00 pm Monday to Sunday, including Public Holidays.

L5 Potentially offensive odour

L5.1 No condition of this licence identifies a potentially offensive odour for the purposes of section 129 of the Protection of the Environment Operations Act 1997.

Note: Section 129 of the Protection of the Environment Operations Act 1997, provides that the licensee must not cause or permit the emission of any offensive odour from the premises but provides a

defence if the emission is identified in the relevant environment protection licence as a potentially offensive odour and the odour was emitted in accordance with the conditions of a licence directed at minimising odour.

4 Operating Conditions

O1 Activities must be carried out in a competent manner

O1.1 Licensed activities must be carried out in a competent manner.
This includes:
a) the processing, handling, movement and storage of materials and substances used to carry out the activity; and
b) the treatment, storage, processing, reprocessing, transport and disposal of waste generated by the activity.

O2 Maintenance of plant and equipment

O2.1 All plant and equipment installed at the premises or used in connection with the licensed activity:
a) must be maintained in a proper and efficient condition; and
b) must be operated in a proper and efficient manner.

O3 Dust

O3.1 All operations and activities occurring at the premises must be carried out in a manner that will minimise the emission of dust from the premises.

O4 Emergency response

O4.1 The licensee must have adequate fire prevention measures in place, and ensure that facility personnel are able to access fire-fighting equipment and manage fire outbreaks at any part of the premises in accordance with the LEMP.

O5 Processes and management

O5.1 The licensee must only dispose of waste at the premises in Landfill B - Stage 3, Stage 4-1, Stage 4 Phase 2-3 within Zone 1 & Zone 3-1 and Stage 4 Phase 2-3 within Zone 2,3-2 and 4

O5.2 The licensee must ensure that waste identified for processing and/or storage for later transfer is located in a clearly defined area separate from the active landfill face.

O5.3 The licensee must take all practicable steps to control entry to the premises.

O5.4 Chemicals which have been collected in conjuction with the 'Household Chemical Collection Program' must be stored in a bunded, roofed and secure location within the premises pending the appropriate disposal or recycling of these chemicals.

O6 Waste management

O6.1 There must be no incineration or burning of any waste at the premises.

O6.2 Leachate must only be disposed by the following methods:
a) disposal to sewer in accordance with a Trade Waste Agreement; or
b) disposal at a facility licensed to accept such waste; or
c) irrigation onto completed areas of the landfill; or
d) injection into the waste disposal cells at the premises.

O6.3 The perimeter of the areas where waste has been landfilled must be contoured to prevent stormwater running onto these surfaces from all storm events less than or equal to a 1 in 10 year 24 hour duration storm event.

O6.4 The licensee must have in place and implement procedures to identify and prevent the disposal of any waste not permitted by this licence to be disposed of at the premises.

O6.5 Cover material must be VENM or other materials approved in writing by the EPA.
a) Daily cover
Cover material must be applied to a minimum depth of 15 centimetres over all exposed landfilled waste prior to ceasing operations at the end of each day.
b) Intermediate cover
Cover material must be applied to a depth of 30 centimetres over surfaces of the landfilled waste at the premises which are to be exposed for more than 90 days.
c) Cover material stockpile
At least two weeks cover material must be available at the premises under all weather conditions. This material may be won on site, or alternatively a cover stockpile must be maintained adjacent to the tip face.

O6.6 The licensee must ensure that the landfill cells are capped progressively and in accordance with condition O6.5 during operations and specifically at times when the level of waste reaches final heights as detailed in the LEMP.

O6.7 Final capping must comprise of the following elements: weathered, recompacted sandstone (between 1250mm and 1000mm thick, dependant on slope) and a 75mm thick revegetation layer constructed as specified in the LEMP.

O6.8 The licensee must maintain a leachate management system with sufficient capacity to store, without discharge to waters, all leachate generated at the premises up to and including a 1 in 25 year average recurrence interval 24 hour rainfall event.

O6.9 The licensee must maintain all leachate storage dams in accordance with the following:
a) Must have a freeboard that can accept rainfall directly on the dam from a 1 in 25 year average recurrence interval 24 hour rainfall event without overflowing;
b) The dam must have a visible marker to indicate the bottom depth of the required freeboard; and
c) Must be lined in accordance with condition O6.11 or incorporates a lining system that demonstrates equivalent or better containment.

O6.10 The licensee must include an effective aeration system in the lined leachate dam.

O6.11 A leachate barrier system exhibiting an in-situ coefficient of permeability of less than 10-9 m/sec must be installed on each surface within the premises that is used for the drainage and storage of

leachate. This condition only applies to surfaces used for the emplacement of leachate that are constructed after 13 December 1999.

5 Monitoring and Recording Conditions

M1 Monitoring records

M1.1 The results of any monitoring required to be conducted by this licence or a load calculation protocol must be recorded and retained as set out in this condition.

M1.2 All records required to be kept by this licence must be:
a) in a legible form, or in a form that can readily be reduced to a legible form;
b) kept for at least 4 years after the monitoring or event to which they relate took place; and
c) produced in a legible form to any authorised officer of the EPA who asks to see them.

M1.3 The following records must be kept in respect of any samples required to be collected for the purposes of this licence:
a) the date(s) on which the sample was taken;
b) the time(s) at which the sample was collected;
c) the EPA point identification number for the point at which the sample was taken; and
d) the name of the person who collected the sample

M2 Requirement to monitor concentration of pollutants discharged

M2.1 For each monitoring/discharge point or utilisation area specified below (by a point number), the licensee must monitor (by sampling and obtaining results by analysis) the concentration of each pollutant specified in Column 1. The licensee must use the sampling method, units of measure, and sample at the frequency, specified opposite in the other columns:

M2.2 Air Monitoring Requirements

POINT 10

Pollutant	UOM	Frequency	Sampling Methods
Methane	percent by volume	Quarterly	Special Method 1

POINT 7,8

Pollutant	UOM	Frequency	Sampling Methods
Particulates - Deposited Matter	grams per square metre per month	Monthly	Australian Standard 3580.10.1-2003

M2.3 Water and/ or Land Monitoring Requirements

POINT 1

Pollutant	UOM	Frequency	Sampling Methods
BOD	milligrams per litre	Special Frequency 1	Grab sample
Conductivity	microsiemens per centimetre	Special Frequency 1	Probe
Nitrogen (ammonia)	milligrams per litre	Special Frequency 1	Grab sample
pH	pH	Special Frequency 1	Probe
Total suspended solids	milligrams per litre	Special Frequency 1	Grab sample

POINT 12,14,16,17,23,24,25,28

Pollutant	UOM	Frequency	Sampling Methods
Alkalinity (as calcium carbonate)	milligrams per litre	Quarterly	Grab sample
Calcium	milligrams per litre	Quarterly	Grab sample
Chloride	milligrams per litre	Quarterly	Grab sample
Fluoride	milligrams per litre	Quarterly	Grab sample
Magnesium	milligrams per litre	Quarterly	Grab sample
Nitrate	milligrams per litre	Quarterly	Grab sample
Nitrite	milligrams per litre	Quarterly	Grab sample
Phosphorus	milligrams per litre	Quarterly	Grab sample
Sodium	milligrams per litre	Quarterly	Grab sample
Sulfate	milligrams per litre	Quarterly	Grab sample
Total dissolved solids	milligrams per litre	Quarterly	Grab sample

POINT 12,14,16,17,23,24,25,28,21,26

Pollutant	UOM	Frequency	Sampling Methods
Aluminium	milligrams per litre	Yearly	Grab sample

Arsenic	milligrams per litre	Yearly	Grab sample
Barium	milligrams per litre	Yearly	Grab sample
Benzene	milligrams per litre	Yearly	Grab sample
Cadmium	milligrams per litre	Yearly	Grab sample
Chromium (hexavalent)	milligrams per litre	Yearly	Grab sample
Chromium (total)	milligrams per litre	Yearly	Grab sample
Cobalt	milligrams per litre	Yearly	Grab sample
Copper	milligrams per litre	Yearly	Grab sample
Ethyl benzene	milligrams per litre	Yearly	Grab sample
Lead	milligrams per litre	Yearly	Grab sample
Manganese	milligrams per litre	Yearly	Grab sample
Mercury	milligrams per litre	Yearly	Grab sample
Nickel	milligrams per litre	Yearly	Grab sample
Organochlorine pesticides	milligrams per litre	Yearly	Grab sample
Organophosphate pesticides	milligrams per litre	Yearly	Grab sample
Polycyclic aromatic hydrocarbons	milligrams per litre	Yearly	Grab sample
Standing Water Level	metres	Quarterly	In situ
Toluene	milligrams per litre	Yearly	Grab sample
Total petroleum hydrocarbons	milligrams per litre	Yearly	Grab sample
Total Phenolics	milligrams per litre	Yearly	Grab sample
Xylene	milligrams per litre	Yearly	Grab sample
Zinc	milligrams per litre	Yearly	Grab sample

POINT 12,14,16,17,23,24,25,28,18,20,22,21,26

Pollutant	UOM	Frequency	Sampling Methods

Conductivity	microsiemens per centimetre	Quarterly	Probe
pH	pH	Quarterly	Probe

POINT 12,14,16,17,23,24,25,28,18,20,22

Pollutant	UOM	Frequency	Sampling Methods
Nitrogen (ammonia)	milligrams per litre	Quarterly	Grab sample
Potassium	milligrams per litre	Quarterly	Grab sample
Total organic carbon	milligrams per litre	Quarterly	Grab sample

POINT 18,20,22

Pollutant	UOM	Frequency	Sampling Methods
Dissolved Oxygen	milligrams per litre	Quarterly	Probe
Faecal Coliforms	colony forming units per 100 millilitres	Quarterly	Grab sample
Total dissolved solids	micrograms per litre	Quarterly	Grab sample
Total suspended solids	milligrams per litre	Quarterly	Grab sample

POINT 21,26

Pollutant	UOM	Frequency	Sampling Methods
Alkalinity (as calcium carbonate)	milligrams per litre	Yearly	Grab sample
BOD	milligrams per litre	Yearly	Grab sample
Calcium	milligrams per litre	Yearly	Grab sample
Chloride	milligrams per litre	Yearly	Grab sample
Fluoride	milligrams per litre	Yearly	Grab sample
Magnesium	milligrams per litre	Yearly	Grab sample
Nitrate	milligrams per litre	Yearly	Grab sample

Nitrite	milligrams per litre	Yearly	Grab sample
Nitrogen (ammonia)	milligrams per litre	Yearly	Grab sample
Phosphate	milligrams per litre	Yearly	Grab sample
Phosphorus (total)	milligrams per litre	Yearly	Grab sample
Potassium	milligrams per litre	Yearly	Grab sample
Sodium	milligrams per litre	Yearly	Grab sample
Sulfate	milligrams per litre	Yearly	Grab sample
Total dissolved solids	milligrams per litre	Yearly	Grab sample
Total organic carbon	milligrams per litre	Yearly	Grab sample
Total suspended solids	milligrams per litre	Yearly	Grab sample

M2.4 For the purpose of the table above:
a) "Special Frequency 1" means within the first 24 hours of discharge.
b) "Special Method 1" means in accordance with Benchmark Technique 17 of the EPA's "Environmental Guidelines: Solid Waste Landfills" 2016.

M3 Testing methods - concentration limits

M3.1 Monitoring for the concentration of a pollutant emitted to the air required to be conducted by this licence must be done in accordance with:
a) any methodology which is required by or under the Act to be used for the testing of the concentration of the pollutant; or
b) if no such requirement is imposed by or under the Act, any methodology which a condition of this licence requires to be used for that testing; or
c) if no such requirement is imposed by or under the Act or by a condition of this licence, any methodology approved in writing by the EPA for the purposes of that testing prior to the testing taking place.

Note: The *Protection of the Environment Operations (Clean Air) Regulation 2022* requires testing for certain purposes to be conducted in accordance with test methods contained in the publication "Approved Methods for the Sampling and Analysis of Air Pollutants in NSW".

M3.2 Subject to any express provision to the contrary in this licence, monitoring for the concentration of a pollutant discharged to waters or applied to a utilisation area must be done in accordance with the Approved Methods Publication unless another method has been approved by the EPA in writing before any tests are conducted.

M4 Weather monitoring

M4.1 For each monitoring point specified in the table below the licensee must monitor (by sampling and obtaining results by analysis) the parameters specified in Column 1. The licensee must use the sampling method, units of measure, averaging period and sample at the frequency, specified opposite in the other columns.

Point 27

Parameter	Units of Measure	Frequency	Averaging Period	Sampling Method
Air temperature	degree Celsius	Continuous	1 hour	AM-4
Wind direction	degree(s)	Continuous	15 minute	AM-2 & AM-4
Wind speed	metres per second	Continuous	15 minute	AM-2 & AM-4
Sigma theta	degree(s)	Continuous	15 minute	AM-2 & AM-4
Rainfall	millimetre	Continuous	15 minute	AM-4
Relative humidity	%	Continuous	1 hour	AM-4

M5 Recording of pollution complaints

M5.1 The licensee must keep a legible record of all complaints made to the licensee or any employee or agent of the licensee in relation to pollution arising from any activity to which this licence applies.

M5.2 The record must include details of the following:
a) the date and time of the complaint;
b) the method by which the complaint was made;
c) any personal details of the complainant which were provided by the complainant or, if no such details were provided, a note to that effect;
d) the nature of the complaint;
e) the action taken by the licensee in relation to the complaint, including any follow-up contact with the complainant; and
f) if no action was taken by the licensee, the reasons why no action was taken.

M5.3 The record of a complaint must be kept for at least 4 years after the complaint was made.

M5.4 The record must be produced to any authorised officer of the EPA who asks to see them.

M5.5 The licensee must notify the landfill operator of each complaint withhin 48 hours of receipt of the complaint.

M6 Telephone complaints line

M6.1 The licensee must operate during its operating hours a telephone complaints line for the purpose of receiving any complaints from members of the public in relation to activities conducted at the premises or by the vehicle or mobile plant, unless otherwise specified in the licence.

M6.2 The licensee must notify the public of the complaints line telephone number and the fact that it is a complaints line so that the impacted community knows how to make a complaint.

M6.3 The preceding two conditions do not apply until 3 months after: the date of the issue of this licence.

M7 Other monitoring and recording conditions

M7.1 The licensee must monitor the remaining disposal capacity (in cubic metres) of the landfill.

6 Reporting Conditions

R1 Compliance, and annual reporting requirements

Compliance with licence conditions

R1.1 The licensee must supply the EPA, via the EPA's online digital portal, the following details of any non-compliance with the conditions of the licence within 21 days after the licensee becomes aware of the non-compliance:

a. the date the licensee became aware of the non-compliance;
b. the date(s) the non-compliance occurred, including if the non-compliance is continuing;
c. whether the non-compliance relates to air, water/land, noise or waste matters (if applicable);
d. whether the non-compliance relates to a pollution incident;
e. the licence condition(s) not complied with;
f. a summary of particulars of the non-compliance, including (if known):
    i. the location where the non-compliance occurred;
    ii. the duration of the non-compliance;
    iii. if the non-compliance is continuing, the suspected end date of the non-compliance;
g. the cause or suspected cause of the non-compliance;
h. any action taken, or proposed to be taken, to mitigate the effects of the non-compliance; and
i. any action taken, or proposed to be taken, to prevent a recurrence of the non-compliance.

R1.2 The EPA may make a written request for further details in relation to each non-compliance reported in accordance with Condition R1.1. The licensee must provide such further details to the EPA, via the EPA's online digital portal, within the time specified in the request.

R1.3 Condition R1.1 does not apply where a non-compliance with a licence condition has been identified by the EPA as part of an EPA environmental compliance audit.

Reporting transition arrangements

R1.4 By 05 August 2026, the licensee must supply to the EPA, via the EPA's online digital portal the details required in Condition R1.1 for any non-compliance with the conditions of the licence that occurred:

i. after the date the licensee supplied their last Statement of Compliance - Licence Conditions to the EPA, and
ii. before the date of the notice of variation of licence that added this condition to this Licence.

Pollution monitoring data summary

R1.5 If the licensee undertakes monitoring as a result of a licence condition, the licensee must supply to the EPA a summary of the results of the pollution monitoring data in respect of each reporting period. The summary must be provided as a Microsoft Excel file, formatted with the following column headings:

a. EPA point identification number;
b. pollutant;
c. unit of measure;
d. number of samples required;
e. number of samples collected and analysed;
f. lowest sample value;
g. mean of sample values; and
h. highest sample value.

The pollution monitoring data summary for the reporting period must be supplied to the EPA via the EPA's online digital portal by the "due date", as defined in the dictionary at the end of this licence.

R2 Notification of environmental harm

R2.1 Notifications must be made by telephoning the Environment Line service on 131 555.

Note: The licensee or its employees must notify all relevant authorities of incidents causing or threatening material harm to the environment immediately after the person becomes aware of the incident in accordance with the requirements of Part 5.7 of the Act.

R2.2 The licensee must provide written details of the notification to the EPA within 7 days of the date on which they became aware of the incident.

R2.3 In accordance with condition R2.1, the licensee must notify the EPA within 24 hours if landfill gas monitoring at Point 10 detects more than 1.25% methane (v/v), and increase the frequency of monitoring to daily, until the EPA determines otherwise.

R3 Written report

R3.1 Where an authorised officer of the EPA suspects on reasonable grounds that:
a) where this licence applies to premises, an event has occurred at the premises; or
b) where this licence applies to vehicles or mobile plant, an event has occurred in connection with the carrying out of the activities authorised by this licence, and the event has caused, is causing or is likely to cause material harm to the environment (whether the harm occurs on or off premises to which the licence applies), the authorised officer may request a written report of the event.

R3.2 The licensee must make all reasonable inquiries in relation to the event and supply the report to the EPA within such time as may be specified in the request.

R3.3 The request may require a report which includes any or all of the following information:
a) the cause, time and duration of the event;
b) the type, volume and concentration of every pollutant discharged as a result of the event;
c) the name, address and business hours telephone number of employees or agents of the licensee, or a specified class of them, who witnessed the event;
d) the name, address and business hours telephone number of every other person (of whom the licensee is aware) who witnessed the event, unless the licensee has been unable to obtain that information after making reasonable effort;
e) action taken by the licensee in relation to the event, including any follow-up contact with any complainants;
f) details of any measure taken or proposed to be taken to prevent or mitigate against a recurrence of such an event; and
g) any other relevant matters.

R3.4 The EPA may make a written request for further details in relation to any of the above matters if it is not satisfied with the report provided by the licensee. The licensee must provide such further details to the EPA within the time specified in the request.

R4 Other reporting conditions

R4.1 The licensee must maintain a daily log and record the following data of fires at the site:
a) Time and date when the fire was deliberately started or reported.
b) Whether the fire was authorised by the licensee, and, if not, the circumstances which ignited the fire.
c) The time and date that the fire ceased and whether it burnt out or was extinguished.
d) The location of fire (eg. clean timber stockpile, putrescible garbage cell, etc).
e) Prevailing weather conditions.
f) Observations made in regard to smoke direction and dispersion.
g) The amount of waste that was combusted by the fire.
h) Action taken to extinguish the fire.

R4.2 The licensee or its employees or agents must notify the EPA in accordance with conditions R2.1 and R2.2 of all fires at the premises as soon as practical after becoming aware of the incident.

7 General Conditions

G1 Copy of licence kept at the premises or plant

G1.1 A copy of this licence must be kept at the premises to which the licence applies.

G1.2 The licence must be produced to any authorised officer of the EPA who asks to see it.

G1.3 The licence must be available for inspection by any employee or agent of the licensee working at the premises.

G2 Contact number for incidents and responsible employees

G2.1 The licensee must operate 24-hour telephone contact lines for the purpose of enabling the EPA to directly contact one or more representatives of the licensee who can:
a) respond at all times to incidents relating to the premises; and
b) contact the licensee's senior employees or agents authorised at all times to:
i) speak on behalf of the licensee; and
ii) provide any information or document required under this licence.

8 Special conditions

E1 Construction of Landfill Gas Extraction System and Flare

E1.1 The licensee is permitted to construct and maintain a landfill gas extraction system and an associated landfill gas flare at the premises.

E1.2 The landfill gas extraction system and landfill gas flare must be designed and constructed in a manner to achieve the outcomes required in the *Protection of the Environment Operations (Clean Air) Regulation 2022* for Group 6 treatment plants. Specifically:

1. The flare must be an enclosed ground level unit.
2. The destruction efficiency of landfill gas in the flare must be greater than 98%.
3. During the operation of the flare, emit no greater than 40mg/m^3 of Volatile Organic Compounds
4. During the operation of the flare, emit no visible smoke other than for a total of no more than 5 minutes in any 2 hour period.

E1.3 The landfill gas flare must be designed and constructed in a manner so that the required monitoring to demonstrate that the required destruction efficiency of the landfill gas flare is achieved. This includes the monitoring of:

1. Combustion temperature, and;
2. Landfill gas flow rate.

E1.4 The licensee must advise the EPA in writing a minimum of 7 days prior to the comissioning of the landfill gas flare. This advice must include:

1. The location of the landfill gas flare, using the Zone, Easting, Northing format (UTM) in the GDA94 co-ordinate system.
2. The proposed date of comissioning.

E2 Alternate Covering of Asbestos Waste

Note: Clause 80(4) of the *Protection of the Environment Operations (Waste) Regulation* 2014 allows for the environment protection licence for the premises to approve materials other than virgin excavated natural material for covering asbestos waste. Any approval to use alternate materials to

cover asbestos waste does not remove any of the requirements relating to asbestos waste as detailed in Clause 80 of the *Protection of the Environment Operations (Waste) Regulation 2014.*

E2.1 The licensee is permitted to cover asbestos waste received at the premises with general solid waste, subject to the conditions below.

E2.2 Only non-friable asbestos waste can be covered with general solid waste.

E2.3 Asbestos waste being covered with general solid waste must be covered to a minimum depth of 0.5m at the time of disposal.

E2.4 Compaction equipment must not be used on general solid wastes used to cover asbestos waste where the depth of the general solid waste covering the asbestos waste is less than 0.5m.

E2.5 The covering of asbestos waste with general solid waste must not generate dust.

E3 Alternative Daily Cover Operational Trial

E3.1 The licensee may conduct a trial using a landfill tarp system as an alternative daily cover for a twelve (12) month period.

E3.2 The twelve (12) month trial period shall commence from the first day a landfill tarp system is utilised at the premises. The Licensee is to notify the EPA in writing five (5) days prior to commencing the first day of the trial period.

E3.3 At the completion of the trial the licensee should submit a short report to the EPA on the trial. The report should:

1. Discuss the method of application of the tarp and any operational difficulties encountered.
2. Demonstrate that the use of the tarp enabled the licensee to meet the required outcomes for daily covering set out in the NSW Landfill Guidelines.
3. Account for any increased amenity impacts that occurred during the trial, and any remedial actions taken to address these.
4. Justify continued use of the tarp on a permanent basis, with any necessary conditions on the installation of the tarp.
5. Be submitted to info@epa.nsw.gov.au within 2 weeks of the completion of the twelve (12) month trial period.

Dictionary

General Dictionary

3DGM [in relation to a concentration limit]	Means the three day geometric mean, which is calculated by multiplying the results of the analysis of three samples collected on consecutive days and then taking the cubed root of that amount. Where one or more of the samples is zero or below the detection limit for the analysis, then 1 or the detection limit respectively should be used in place of those samples
Act	Means the Protection of the Environment Operations Act 1997
activity	Means a scheduled or non-scheduled activity within the meaning of the Protection of the Environment Operations Act 1997
actual load	Has the same meaning as in the Protection of the Environment Operations (General) Regulation 2022
AM	Together with a number, means an ambient air monitoring method of that number prescribed by the Approved Methods for the Sampling and Analysis of Air Pollutants in New South Wales.
AMG	Australian Map Grid
anniversary date	The anniversary date is the anniversary each year of the date of issue of the licence. In the case of a licence continued in force by the Protection of the Environment Operations Act 1997, the date of issue of the licence is the first anniversary of the date of issue or last renewal of the licence following the commencement of the Act.
Approved Methods Publication	Has the same meaning as in the Protection of the Environment Operations (General) Regulation 2022
assessable pollutants	Has the same meaning as in the Protection of the Environment Operations (General) Regulation 2022
BOD	Means biochemical oxygen demand
CEM	Together with a number, means a continuous emission monitoring method of that number prescribed by the *Approved Methods for the Sampling and Analysis of Air Pollutants in New South Wales*.

COD	Means chemical oxygen demand
composite sample	Unless otherwise specifically approved in writing by the EPA, a sample consisting of 24 individual samples collected at hourly intervals and each having an equivalent volume.
cond.	Means conductivity
due date	Means: i) not later than 60 days after the end of each reporting period; or ii) in the case of a transferring licence - not later than 60 days after the date the transfer was granted.
environment	Has the same meaning as in the Protection of the Environment Operations Act 1997
environment protection legislation	Has the same meaning as in the Protection of the Environment Administration Act 1991
EPA	Means the Environment Protection Authority of New South Wales.
EPA Online digital portal	Means eConnect EPA
general solid waste (non-putrescible)	Has the same meaning as in Part 3 of Schedule 1 of the Protection of the Environment Operations Act 1997
flow weighted composite sample	Means a sample whose composites are sized in proportion to the flow at each composites time of collection.
general solid waste (putrescible)	Has the same meaning as in Part 3 of Schedule 1 of the Protection of the Environment Operations Act 1997
grab sample	Means a single sample taken at a point at a single time
hazardous waste	Has the same meaning as in Part 3 of Schedule 1 of the Protection of the Environment Operations Act 1997
licensee	Means the licence holder described at the front of this licence
Licensing Fee Category (Regulation)	Means the numbered short descriptions in Schedule 1 of the Protection of the Environment Operations (General) Regulation 2022.
load calculation protocol	Has the same meaning as in the Protection of the Environment Operations (General) Regulation 2022

local authority	Has the same meaning as in the Protection of the Environment Operations Act 1997
material harm	Has the same meaning as in section 147 of the Protection of the Environment Operations Act 1997
MBAS	Means methylene blue active substances
Minister	Means the Minister administering the Protection of the Environment Operations Act 1997
mobile plant	Has the same meaning as in Part 3 of Schedule 1 of the Protection of the Environment Operations Act 1997
motor vehicle	Has the same meaning as in the Protection of the Environment Operations Act 1997
O&G	Means oil and grease
Percentile [in relation to a concentration limit of a sample]	Means that percentage [eg.50%] of the number of samples taken that must meet the concentration limit specified in the licence for that pollutant over a specified period of time. In this licence, the specified period of time is the Reporting Period unless otherwise stated in this licence.
plant	Includes all plant within the meaning of the Protection of the Environment Operations Act 1997 as well as motor vehicles.
pollution incident	Has the same meaning as in the Protection of the Environment Operations Act 1997
Pollution of waters [or water pollution]	Has the same meaning as in the Protection of the Environment Operations Act 1997
premises	Means the premises described in condition A2.1
public authority	Has the same meaning as in the Protection of the Environment Operations Act 1997
regional office	Means the relevant EPA office referred to in the Contacting the EPA document accompanying this licence
reporting period	For the purposes of this licence, the reporting period means the period of 12 months after the issue of the licence, and each subsequent period of 12 months. In the case of a licence continued in force by the Protection of the Environment Operations Act 1997, the date of issue of the licence is the first anniversary of the date of issue or last renewal of the licence following the commencement of the Act.

restricted solid waste	Has the same meaning as in Part 3 of Schedule 1 of the Protection of the Environment Operations Act 1997
scheduled activity	Means an activity listed in Schedule 1 of the Protection of the Environment Operations Act 1997
special waste	Has the same meaning as in Part 3 of Schedule 1 of the Protection of the Environment Operations Act 1997
TM	Together with a number, means a test method of that number prescribed by the Approved Methods for the Sampling and Analysis of Air Pollutants in New South Wales.
TSP	Means total suspended particles
TSS	Means total suspended solids
Type 1 substance	Means the elements antimony, arsenic, cadmium, lead or mercury or any compound containing one or more of those elements
Type 2 substance	Means the elements beryllium, chromium, cobalt, manganese, nickel, selenium, tin or vanadium or any compound containing one or more of those elements
utilisation area	Means any area shown as a utilisation area on a map submitted with the application for this licence
waste	Has the same meaning as in the Protection of the Environment Operations Act 1997
waste type	Means liquid, restricted solid waste, general solid waste (putrescible), general solid waste (non - putrescible), special waste or hazardous waste
wellhead	Has the same meaning as in Schedule 1 of the Protection of the Environment Operations (General) Regulation 2022

Stephen Beaman

Executive Director Regulatory Operations

NSW Environment Protection Authority

End Notes

Licence varied by notice POEO-2984, issued on 10-06-2026

Licence varied by notice 1651066 issued on 28-Aug-2025

Licence varied by notice 1642618 issued on 30-Aug-2024

Licence varied by notice 1628921 issued on 13-Jun-2023

Licence varied by notice 1610640 issued on 05-Aug-2021

Licence varied by notice 1608004 issued on 08-Apr-2021

Licence varied by notice 1604499 issued on 24-Dec-2020

Licence format updated on 14-Feb-2019

Licence varied by notice 1566038 issued on 05-Jul-2018

Licence varied by notice 1557404 issued on 10-Oct-2017

Licence varied by notice 1527439 issued on 06-Feb-2015

Licence varied by notice 1523865 issued on 08-Oct-2014

Licence varied by notice 1500733 issued on 02-Oct-2012

Licence varied by notice 1100626, issued on 09-Aug-2010, which came into effect on 09-Aug-2010.

Condition A1.3 Not applicable varied by notice issued on <issue date> which came into effect on <effective date>

Licence varied by notice 1088955, issued on 06-Nov-2008, which came into effect on 06-Nov-2008.

Licence varied by notice 1072149, issued on 04-May-2007, which came into effect on 04-May-2007.

Licence varied by notice 1067959, issued on 21-Feb-2007, which came into effect on 21-Feb-2007.

Licence varied by notice 1049630, issued on 23-Aug-2005, which came into effect on 17-Sep-2005.

Licence varied by notice 1044865, issued on 01-Jun-2005, which came into effect on 26-Jun-2005.

Licence varied by notice 1039954, issued on 06-Oct-2004, which came into effect on 31-Oct-2004.

Licence varied by notice 1034896, issued on 27-Feb-2004, which came into effect on 23-Mar-2004.

Licence varied by notice 1026228, issued on 13-Jan-2004, which came into effect on 07-Feb-2004.